

The Assam Court-Fees (Amendment) Act, 1954

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[An Act further to amend the Court-Fees Act, 1870 \(Act 7 of 1870\) with reference to the scale of Court-Fees in Assam.](#)

[Preamble. - Whereas it is necessary to amend the Court-Fees Act, 1870 \(Act 7 of 1870\) hereinafter called the Principal Act, in its application to Assam, in the manner hereinafter appearing;](#)

[It is hereby enacted in the Fifth Year of the Republic of India as follows:-](#)

1.

Short title, extent and commencement.

(1)

This Act may be called the Assam Court-Fees (Amendment) Act, 1954.

(2)

It extends to the whole of Assam.

(3)

It shall come into force at once.

2.

Amendment of Section 1(3) of Assam Act 8 of 1950.

- In sub-section (3) of Section 1 of the Assam Court-Fees (Amendment) Act, 1950, a full stop shall be inserted after the figures "1950" and the words "and shall remain in force for a period of five years" shall be deleted.

3.

Amendment of Schedule II, Article 1.

Assam: Nagaland

For Article 1 substitute the following:

Number

Proper fee

1. Application or petition

(a) When presented to any officer of the Custom or Excise Department or to any Magistrate by any person having dealings with the Government, and when the subject-matter of such application relates exclusively to those dealings; or When presented to any Municipal Board or other local authority constituted under any Act for the time being in force for the conservancy or improvement of any place, if the application or petition relates solely to such conservancy or improvement; or When presented to any civil court other than a principal civil court of original jurisdiction, or to any Court of Small Causes, constituted under Act No. 16 of 1868, Section 20 or to a Collector or other officer of revenue in relation to any suit or case in which the amount or value of the subject-matter is less than fifty rupees; or When presented to any civil, criminal or revenue court or to any board or executive officer for the purpose of obtaining a copy or translation of any judgement, decree or order passed by such court, board or officer or of any other document or record in such court or office;

Fifty paise.

(b) When presented to a regional transport authority or State Transport Authority containing a prayer for permits for contract carriage, stage carriage, private carrier or public carrier or for any other purpose

Seven rupees and fifty naye paise.

4.

Amendment of Schedule II, Article 11.

- [Further amended by Assam Act 7 of 1963.]

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